

Justification for an Exception to Fair Opportunity or to Use Brand-Name Restriction

Is this a brand-name justification? ☐ Yes ☒ No

Is this a Bridge Action as defined in the AF Bridge Action Reduction Plan? ☒ Yes ☐ No

Contracting Activity: Space Systems Command (SSC) MilComm & PNT - Contracting (CGK)

Purchase Request / Local ID Number: 25-07

Program Name (and Program Element, if applicable): Space and Missile Systems Center Acquisition and Financial Support Follow-on (SAFS-2) Services

Estimated Cost/Price of the Order (including options): [REDACTED]

Type Program (see DAFFARS 5302.101 for definitions): ☒ PEO Program ☐ Operational ☐ Enterprise

Type of Determination: ☒ Individual ☐ Class Expires: [click and select]

Fair Opportunity Exception: FAR 16.505(b)(2)(i) (Check the applicable subparagraph below.)

☒ (A) ☐ (B) ☐ (C) ☐ (D) ☐ (E) ☐ (F) ☐ (G) Check this box to display the FAR 6.302 exceptions.

[Click here for instructions to complete the boxes below.](#)

(1) Contracting Activity:

Acquisition Office: Space Systems Command (SSC)
MilComm & PNT - Contracting (CGK)
483 North Aviation Boulevard
El Segundo, CA 90245

Task Order: FA8807-19-F-0008

Contractor: Tecolote Research Institute
420 S Fairview Ave. STE. 201
Goleta CA 93117-3626

(2) Nature and/or description of the action being approved:

This Exception to Fair Opportunity (EFO) will result in a modification to existing task order FA8807-19-F-0008 for the MilComm & PNT (MCPNT) Space and Missile Systems Center Acquisition and Financial Support Follow-on (SAFS-2) services. This task order was competitively awarded under the General Services Administration (GSA) One Acquisition Solution for Integrated Services (OASIS) Unrestricted Pool SB Pool 5B Indefinite Delivery Indefinite Quantity (ID/IQ) contract GS00Q14OADS619 to Tecolote Research Institute (Tecolote). This task order supports mission needs via a Firm Fixed Price (FFP) contract type that includes two (2) informational Labor Contract Line-Item Numbers (CLINs), one (1) other direct costs (ODC) CLIN and the required GSA Contract Access Fee (CAF) for a total of four (4) CLINs. The two (2) Labor CLINs will include priced sub-CLINs for MCPNT program functions for Production (3022), Operations and Maintenance (3410), Research and Development (3620) and (9701) Foreign Military Sales.

(3) Description of the supplies/services required to meet the agency's needs:

This performance-based services task order provides support directly to the Space Systems Chief of Staff Office, as well as all MCPNT, and consists of financial management capabilities to execute effective and responsive integrated program management of space-related research, development, production, and life-cycle acquisition activities.

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Financial management capabilities include cost estimating, earned value management and schedule analysis, budget integration, budget execution, budget reconciliation, management of International Partner Agreements, Acquisition Reporting and Comprehensive Cost and Requirement System (CCaR) support.

The task order also provides for executive acquisition support services to both the MCPNT Directorate and CG Divisions for reporting, schedule management, strategic planning and other related tasks which are focused on the directorate and programs acquisition processes. Additionally, this task order provides organizational support services for supplies, infrastructure, readiness, and information management for the directorate, divisions, programs and functional offices.

The modification to the current SAFS-2 task order is for an extension of 16 months to the period of performance only. Initially, the same labor scope and number of Full Time Equivalent (FTE) positions as on the current task order will be required; however, the labor scope and number of FTEs is expected to decrease over the course of the next 16 months due to the Financial Support Services (FSS) portion of support being transitioned to GSA task order 47QFPA24F0003 (discussed further in Section 4 below). The tasks required during the extended period of performance fall within the existing scope of the original task order and the basic ID/IQ. No change is expected to the performance work statement or number of FTEs on the current task order. The total estimated \$■■■■ cost increase still falls within the order limitations of the basic ID/IQ and the anticipated new period of performance, which will end on 30 Jun 2026 (if all options are exercised), also falls within the ordering period of the ID/IQ. The basic GSA OASIS ID/IQ contract does not have a dollar value ceiling and the ordering period is still current. The requirements set forth in this EFO meet the scope of the basic ID/IQ.

The Government estimates that the 16-month extension to the period of performance for this task order will cause a cost increase on the current task order of approximately \$■■■■ and is broken out as follows:

Base period: 01 Mar 2025 through 31 Oct 2025 (8 months), is estimated at \$■■■■

Option #1: 01 Nov 2025 through 28 Feb 2026 (4 months) is estimated at \$■■■■

Option #2: 01 Mar 2026 through 30 Jun 2026 (4 months) is estimated at \$■■■■

Total bridge action: 01 Mar 2025 to 30 Jun 2026 (16 months) is estimated at \$■■■■

Funding: The following USSF fiscal year 2025 or 2026 appropriation funds (as appropriate) will be obligated to support this bridge action: Production (3022), Operations and Maintenance (3410), Research and Development (3620), and Foreign Military Sales (9701). Available funding is provided by the respective programs and will be reviewed and verified for proper fiscal law consideration prior to the time of obligation.

(4) Identification of the exception to fair opportunity and the supporting rationale:

FAR 16.505(b)(1)(i) requires the Contracting Officer to provide each awardee a fair opportunity to be considered for each order exceeding the micro-purchase threshold issued under multiple delivery-order contracts or multiple task-order contracts unless one of the statutory exceptions applies as provided for paragraph (b)(2) of FAR 16.505. Due to the unforeseen circumstances documented in the below paragraphs, and with the expiration of the current task order being 28 February 2025, SSC does not have necessary time to undergo the competitive process and provide fair opportunity. Therefore, the Contracting Officer has determined the need to extend these services via a sole source modification to the existing task order utilizing the exception to the fair opportunity requirement found at FAR 16.505(b)(2)(i)(A): "the agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays."

GSA task order 47QFPA24F0003 for the Financial Support Services (FSS) follow-on was initially awarded on 1 December 2023, however, a subsequent protest was lodged with GAO concerning GSA's decision regarding

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solicitation 47QFPA23R0002 in mid-December that delayed proceedings. In early March of 2024, GAO dismissed the first protest and GSA lifted the Competition in Contracting Act (CICA) stay at the end of May 2024. A second protest was lodged with the GAO in the beginning of June that further delayed the start to the financial management capabilities. In late August 2024, GAO dismissed the second protest and GSA lifted the CICA stay in the beginning of October 2024. A third protest was lodged on 13 November 2024. The case will be turned over to GAO who has up to 100 days to issue their decision and then return to GSA for corrective actions. Upon resolution of the third protest and the lift of the current CICA stay, the 10-day window for filing of a protest will restart and if a fourth protest is submitted, the GAO/GSA timeline will restart. In the interim, a provisional bridge contract is necessary to prevent any service interruption and facilitate an effective transition.

Due to the imposition of the third CICA stay, the transition of financial management capabilities is currently on hold. The issuance of a notice to proceed with the new task order award is contingent upon the GAO's decision and GSAs implementation of the corrective actions. The challenge to the SAFS FSS contract, combined with the imminent expiration of the current Acquisition and Financial Support Follow-On (SAFS-2) contract on 28 February 2025, necessitates ongoing support to avoid work disruption. This contract modification is imperative to fulfill the objectives of the Government directorate.

GSA's CG acquisition support services procurement was originally anticipated to be awarded under the OASIS SB contract. However, due the second protest being lodged, GSA delayed the release of the draft solicitation in order to implement corrective actions and conduct a deeper dive into the acquisition documentation prior to releasing in order to reduce the risk of a protest to the acquisition support services procurement. This delay, as well as delays attributable to a GSA reorganization, leadership and personnel changes, will cause GSA to miss the deadline to place a task order under the OASIS SB contract. Therefore, a change to the acquisition and solicitation documentation is now necessary to reflect a new contract vehicle / strategy. The timeframe to issue a task order from a GSA ID/IQ is now estimated at October 2025, with the risk for additional delays due to protests, each having the potential to last 4 - 5 months. Once the current task order expires on 28 February 2025, multiple Space Systems Command (SSC) MCPNT programs will be without these critical financial and acquisition support full time equivalents (FTEs) for anywhere between 4 - 12 months or more. As such, this modification to the existing task order covers any gaps in mission essential financial management capabilities, budget execution, cost estimating, schedule management, access to program documents and correspondence required for operations, personnel mission readiness and mission required training to programs such as ESS, GPS, OCX, and more. Failure to authorize this EFO would result in loss of these FTEs which are the support staff that provide support for PEO-level acquisition and financial management and directorate-level acquisition and organizational support resulting in certain mission failure at both the programmatic and command level.

Currently, Tecolote possesses the depth of knowledge, security-cleared personnel, and expertise necessary to support the mission needs at this point in time. Award to another contractor at this time, without transition or no previous experience, would result in a minimum of a 60-day delay in services with multiple repercussions. A new contractor will not have the depth of knowledge in the directorate's security process causing delays. An award to any other contractor without a preplanned transition would result in a further unacceptable delay and a break in service before a new contractor would be able to provide all of the security-cleared, knowledgeable, and experienced staff necessary to resume performance that are primed and ready to assume the support required for this task order. Directorate, division, and functional levels would be negatively impacted as well as mission partners and program customers if acquisition support was not approved for the next 16 months.

The Government currently lacks the proper organic financial management resources and thus requires expert support to help manage the programs from a financial standpoint. Without the required support being continued for the requested 16-month extension, mission failure could occur. The in-depth knowledge is critical for SSC to continue to develop, maintain, and preserve credible program cost estimates, perform earned value management, schedule analysis, and develop inputs for acquisition reporting and ensure funding is available. Without the proper understanding of what it means to execute financial management capabilities assigned programs cannot function.

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(5) Contracting Officer's determination that the anticipated cost to the Government will be fair and reasonable:

The Contracting Officer has determined that the anticipated cost to the Government will be fair and reasonable based on comparisons with historical information from the current task orders and in accordance with FAR 15.4. The rates for the bridge actions are expected to be based on cost actuals with some adjustments for levels of inflation, and to account for hybrid work schedules. The Contracting Officer also expects to verify proposed rates against the originally competed task order; this task order was evaluated and determined to be fair and reasonable at the time of the original award and therefore use of historical information from the original award is an approved method. In addition, the technical team will conduct a technical evaluation to consider the level of effort and labor mix that is proposed to continue performance and will provide input to the Contracting Officer in determining a fair and reasonable price. Other tools such as review of similar work and comparison to an independent government cost estimate will also be used in determining a fair and reasonable price. Certified Cost or Pricing Data will be a requirement for this bridge action.

It is anticipated that the CLIN structure, for the base and both options, will be as follows:

CLIN 9000 - Acquisition Labor
CLIN 9001 - Financial Labor
CLIN 9002 - ODCs
CLIN 9004 - Contract Access Fee (CAF)

(6) Other facts supporting the justification:

N/A

(7) Actions the agency may take to remove or overcome any barriers to increasing fair opportunity before any subsequent acquisition for the supplies or services:

This EFO will enable the Government to better establish proper requirements for each SSC delta supported under this EFO. The deltas being supported under these Task Orders, e.g. SSC/CGK, SSC/CGF, and SSC/CGZ, are currently undertaking efforts to identify their individual requirements for expected future competed efforts. CGZ has partnered with GSA for the Acquisition Support Services follow-on and is assisting with the draft solicitation as well as the feedback received from industry in response to the draft solicitation posting to Sam.gov. The Acquisition Support Services follow-on is currently expected to award in October 2025.

(8) Program Manager's certification that supporting data is accurate and complete:

As evidenced by my signature below, I certify that any supporting data contained herein, which is my responsibility, is both accurate and complete.

(9) Contracting Officer's certification that the justification is accurate and complete:

As evidenced by my signature below, I certify that the justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

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(10) Approving Official's determination that one of the circumstances in [FAR 16.505\(b\)\(2\)\(i\)](#) applies to the order.

As evidenced by my signature below, I hereby determine that the fair opportunity exception checked on page 1 applies.

Date 20 Nov 2024	Program Manager [REDACTED] SSC/CGZ [REDACTED]	[REDACTED] [REDACTED] [REDACTED]
Date 20 Nov 2024	Contracting Officer [REDACTED] SSC/CGK [REDACTED]	[REDACTED] [REDACTED] [REDACTED]
Date 03 Dec 2024	Local Legal Reviewer [REDACTED] SSC/JAQ [REDACTED]	[REDACTED] [REDACTED] [REDACTED]
Date 03 Dec 2024	Chief of the Contracting Office (COCO) [REDACTED] SSC/CGK [REDACTED]	[REDACTED] [REDACTED] [REDACTED]
Date 11 Dec 2024	Competition Advocate [REDACTED] SSC/PK / [REDACTED]	[REDACTED] [REDACTED] [REDACTED]
Date	Program Executive Officer (PEO) Cordell DeLaPena, Jr, SES, DAF PEO MilComm & PNT [REDACTED]	[REDACTED] [REDACTED] [REDACTED]